

In T.267/08 the board held that professional representatives must be expected to be acquainted with all notices published by the EPO which are relevant to patent practice. The new representative should have realised that the decision of the President of the European Patent Office dated 12 July 2007 on the filing of authorisations (OJ SE 3/2007, L.1) explicitly required an original version of the authorisation to be filed and that the decision of the President of the European Patent Office dated 12 July 2007 concerning the filing of patent applications and other documents by facsimile (OJ SE 3/2007, A.3) forbade the filing of authorisations by fax. The fact that the new representative had previously been notified that the change of representative had been registered should not have misled him into believing that a faxed version of an authorisation would suffice. Only a "fundamentally inexcusable ignorance of the law" (referring to J.5/02) could lead him to this conclusion.

In T.590/18 of 4 July 2018 the board held that a debit order filed on paper (EPO Form 1010) after 1 December 2017 could at most be accepted as a valid payment of the appeal fee if the appellant could successfully claim to have seen still current information clearly indicating the option of paying this way on the EPO website after the entry into force of the change to fee payment methods, to have been entitled to entertain a legitimate expectation as to that information's accuracy, and indeed to have acted in reliance on it. Finding a PDF version of a brochure published before the change's entry into force was not sufficient to establish such a legitimate expectation, especially when the appellant had anyway known about the change.

The Enlarged Board held in R.4/09, in the context of an alleged breach of the principle of legitimate expectation, that a party to the proceedings, at least where it was represented by an authorised representative, was deemed to know the case law, and cannot plead lack of such knowledge as an excuse, "ignorantia legis non excusat" (see also T.736/14 and J.6/19). According to J.19/10, the professional representative could be expected to be familiar with procedural matters in general, and the boards' detailed and consistent jurisprudence in particular.

In T.1086/09 the board held that the representative's expectation that a refund of 50% of the appeal fee would be available was not legitimate as it was the consequence of an error in law, i.e. an incorrect reading of the new R.103(2) EPC, which did not apply to the appeal in question.

2.2.2 Interpretation of substantive patent law

In G.2/07 and G.1/08 (OJ 2012, 130 and 206) the Enlarged Board of Appeal held that there could be no "legitimate expectation" that an interpretation of a substantive provision governing patentability given in a decision of the boards of appeal will not be overruled in the future by the Enlarged Board, since recognising such an expectation as legitimate would undermine the function of the Enlarged Board. This holds particularly true for issues on which there is no solid body of decisions all to the same effect but where instead the relevant jurisprudence consists only of a very limited number of individual decisions.

2.2.3 Weighing of interests in inter partes cases

In T 1644/10, the EPO had published an incorrect patent specification B1 and subsequently corrected it as B9. The appellant had relied on the accuracy of the published specification B1 and consequently failed to file notice of opposition within the prescribed period. The board held that whether the protection of legitimate expectations could be applied in an inter partes procedure where there had been a failure to meet the opposition deadline was subject to a weighing-up of interests. There was no general rule that the patentee's legitimate expectation that the grant decision had become final had to be considered subordinate to the opponent's legitimate expectation that the content of the published patent specification was correct. That would run counter to the rule of equal procedural treatment of the parties. In the case in hand, the appellant could not rely on the applicability of the principle of legitimate expectations in relation to its failure to meet the opposition deadline.

In T 595/11 the appellant had enclosed a debit order for a reduced appeal fee with the notice of appeal. It is only four years after expiry of the time limit for filing the appeal that the Office first made the appellant aware of an issue with this. The board acknowledged the appellant's legitimate expectations that the fee payment was in good order. After weighing up the legitimate interests of all the parties the board concluded that the original error might have had serious and inequitable consequences through the Office's failure to discover it. Therefore, it was equitable that the Office' failure was made good and the error was now allowed to be remedied, as far as possible. Some adverse effect was inevitable. Nonetheless, the possibility of a real, but otherwise in itself not necessarily decisive setback for a party (here the non-occurrence of an immediate success) was more preferable than a certain decisive loss of all rights for another party (see also T 1037/11, T 2554/11, T 707/12).

2.2.4 Area of party's own responsibility

The EPO is generally obliged to draw the party's attention to easily remediable deficiencies. However, the principle of good faith does not impose an obligation to warn a party of deficiencies within the area of the party's own responsibility (for more information, see in this chapter III.A.4.3.1).

2.2.5 Administrative notice with no legal consequences

The Enlarged Board observed in G 2/97 (OJ 1999, 123) that the notice sent by the registry of the boards of appeal was a standard form, nothing more than an administrative notice to inform the parties of the reference number of the appeal proceedings. It had no legal consequences; it was not a "communication" within the meaning, for example, of Art. 110(2) EPC 1973 (R. 100(2) EPC). Such a notice could not be considered to give rise to any misunderstanding.

In T 642/12 the board held that in inter partes appeal cases, the completion of EPO Form 2701 by the formalities officer of the department of first instance does not establish

the legitimate expectation that formal requirements of the appeal have already been checked by the EPO.

2.3. Causal link and the requirement of proof

For applicants to be able to claim that they have relied on incorrect information in accordance with the principle of good faith, it has to be established that the erroneous information from the EPO was the direct cause of the action taken by the applicants and objectively justified their conduct (T. 460/95 of 16 July 1996; G. 2/97, OJ 1999, 123; J. 5/02; J. 5/07; J. 10/17). According to J. 27/92, it must be established that, on an objective basis, it was reasonable for the appellant to have been misled by the information. Whether or not this was the case would depend on the individual circumstances of each case.

In T. 321/95 the appellant argued that it had an oral agreement with the primary examiner. No such agreement was derivable from the file. Thus, the appellant's arguments on an alleged violation of good faith were no more than the appellant's personal opinion and a mere "miscommunication" between the primary examiner and the applicant.

In T. 343/95, the board considered the contents of a telephone conversation on which the appellant based its arguments with respect to an alleged violation of the principle of good faith. The board held that in a case like the one in hand it was sufficient if the board determined the contents of the conversation on the basis of a balance of probabilities. The conditions for the application of the principle of legitimate expectations were fulfilled (but see T. 188/97, where the board could not establish the facts surrounding a telephone conversation with sufficient certainty to invoke the principle of legitimate expectations).

3. Information provided by EPO

3.1. Clear and unambiguous communications and forms

According to the case law of the boards of appeal, the principle of the protection of legitimate expectations governing procedure between the EPO and applicants requires that communications addressed to applicants must be clear and unambiguous, i.e. drafted in such a way as to rule out misunderstandings on the part of a reasonable addressee. A communication from the EPO containing erroneous information which misleads the applicant into taking action causing the refusal of his patent application is null and void in its entirety (J. 2/87, OJ 1988, 330). An applicant must not suffer a disadvantage as a result of having relied on a misleading communication (J. 3/87, OJ 1989, 3; J. 23/14). On the contrary, if his actions were based on a misleading communication he is to be treated as if he has satisfied the legal requirements (J. 1/89, OJ 1992, 17).

In T. 2092/13 the board concluded that a communication from the examining division was ambiguous and had misled the appellant. In the circumstances of the case, the communication had created a realistic and reasonable expectation that any subsequent negative finding on the issue of novelty and/or inventive step was communicated to the appellant before any adverse decision would be taken. The appealed decision was set aside and the case remitted for further prosecution. See also T. 1423/13.

The Legal Board suggested in J 17/04 that it was the EPO's responsibility to provide **forms** which catered for all procedural possibilities in a clear and unambiguous manner. In the case in hand the applicant was allowed to rely on a possible interpretation of the text of the EPO form in accordance with the principle of the protection of legitimate expectations even if another interpretation was more current.

3.2. Information provided as courtesy service

The principle of the protection of legitimate expectations also applies to courtesy services provided by the EPO where these are not worded so as to rule out any misunderstanding on the part of a reasonable addressee. However, an applicant cannot rely on the EPO systematically providing certain courtesy services and therefore is not entitled to base a claim on their omission (J 12/84, OJ 1985, 108; J 1/89, OJ 1992, 17; J 27/92, OJ 1995, 288; G 2/97, OJ 1999, 123), or on the fact that the communication was not sent to the correct addressee (J 23/10).

In J 1/89 the board held that the applicant was entitled to rely on the accuracy and completeness of information provided as a courtesy service. He could not, however, rely on courtesy services not required by the EPC being systematically provided. If an applicant paid a renewal fee late as a result of a misleading reminder, he had to be treated as if he had paid in time.

In J 34/92 the fifth-year renewal fee had not been paid in full. The professional representative did not receive the communication the EPO usually issues drawing attention to the fact that late payment of the renewal fee was possible upon payment of an additional fee. The loss of rights communication under R 69(1) EPC 1973 (R 112(1) EPC) made, however, reference to such communication. The board held that the communication drawing attention to the possibility of a late payment plus surcharge was only a courtesy service of the EPO. The applicant could not draw any conclusions in his favour from the fact that this communication was not sent.

In J 27/92 (OJ 1995, 288) the appellant's representative had relied on the advice given by the Information Office by telephone as to the amount of the examination fee payable. The board held that where such a service had been rendered, an applicant was entitled to rely upon its content if the – written or oral – communication from the EPO was the direct cause of the action taken and, on an objective basis, it was reasonable for the appellant to have been misled by the information. See also J 10/17.

3.3. Contradictory acts

In J 27/94 (OJ 1995, 831) the board decided that if a declaration which was subject to a condition and therefore invalid was treated as a valid procedural act by the EPO, the EPO was not allowed later to go back on its own earlier conduct which served as a basis for the applicant's decision on how to proceed, because this would have represented "venire contra factum proprium" and thus offended against a generally recognised legal maxim (see also T 1825/14).

In J.14/94 (OJ 1995, 824), the applicant had failed to pay the third renewal fee. Nevertheless, the EPO continued the examination procedure for several years without informing the applicant of any loss of rights. The board held that if, during a long period of time, the EPO by its conduct led the parties and the public to the legitimate belief that no loss of rights had taken place, the EPO could not later refer to a loss of rights which occurred several years previously as this would constitute "venire contra factum proprium" and therefore contravene the principle of legitimate expectations. In such circumstances, the late payment of a renewal fee might – by way of exception – be considered as having been made in time if the EPO had not informed the applicant of the outstanding payment, had accepted later renewal fees without objection and had continued the examination proceedings for several years.

In J.1/08 the Legal Board concluded that the mere fact that for an admittedly extremely long time period (from August 2004 to March 2007) the EPO had simply not dealt with the application was not sufficient to justify a legitimate expectation on the applicant's side that the application would be regarded by the EPO as still pending. The situation before the board therefore differed from the facts in J.14/94, where the EPO had actively continued the examination proceedings for several years (see also J.19/16).

In J.18/96 (OJ 1998, 403) the board accorded a filing date to protect an applicant's legitimate expectations, although he had not fulfilled a requirement under Art. 80 EPC 1973 (R. 40 EPC). By issuing a communication under R. 85a EPC 1973 (deleted in EPC 2000), the Receiving Section had given him the impression that his application was validly filed (see also J.5/89).

In T.926/09 the board treated the claims in question as if they had been originally filed with the application whereas they had in fact been filed in the period before receipt of the European search report and thus in breach of R. 86(1) EPC 1973 (R. 137(1) EPC). The appellant was entitled to rely on the communication by the Receiving Section indicating that the set of claims was admitted.

In T.2364/12 the board set aside the opposition division's decision holding the opposition inadmissible on the grounds that the notice of opposition was deemed not to have been filed in due time. The board found that the opponent could, on the basis of the opposition division's communication informing the appellant that the opposition fee was considered to have been validly filed, reasonably assume that the opposition had been validly filed. See also chapter III.B. "Right to be heard".

In T.2246/13 the board held that the letter by which the EPO cancelled the oral proceedings and announced that the procedure would be continued in writing in itself resulted in a legitimate expectation on the part of the appellant that it would have the opportunity to file observations, if only to be able to react to the changed situation resulting from the other party's withdrawal of its request for oral proceedings. The appellant thus could not expect that a decision revoking the patent would be issued on the same date. The board set the opposition division's decision aside. See also T.1423/13.